

HOUSE BILL 1374

By Hemmer

AN ACT to amend Tennessee Code Annotated, Title 47,
relative to speculative tickets.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 47-50-119, is amended by deleting the section.

SECTION 2. Tennessee Code Annotated, Section 47-50-121(a), is amended by adding the following as a new subdivision:

() "Speculative ticket":

(A) Means a ticket that is not in the actual or constructive possession of a reseller at the time of sale, advertisement, or listing; and

(B) Includes a ticket sold by a reseller that, at the time of resale, is not:

(i) In the physical possession of the reseller;

(ii) Owned by the reseller; or

(iii) Under contract to be transferred to the reseller;

SECTION 3. Tennessee Code Annotated, Section 47-50-121, is amended by adding the following as a new subsection:

(e)

(1)

(A) A third-party ticket reseller shall not sell or offer to sell a speculative ticket.

(B) A third-party ticket reseller that operates an internet website or other electronic service that provides a mechanism for two (2) or more

parties to participate in a resale transaction shall not allow the sale or offering for sale of a speculative ticket.

(2)

(A) The division of consumer affairs in the office of the attorney general and reporter shall enforce this subsection (e). The division shall establish a means by which a consumer may submit a complaint for a violation of this subsection.

(B) If the division of consumer affairs finds that a third-party ticket reseller violated subdivision (e)(1)(A) or (e)(1)(B), then the division must assess a penalty of five thousand dollars (\$5,000) per violation. Each instance of selling, offering for sale, or allowing the sale or offering for sale of a speculative ticket is a separate violation.

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it, and applies to conduct occurring on or after that date.